

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

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JUSTIN PEREZ,

**SUMMONS**

Plaintiff, Index No.:

-against-

The Basis of Venue is:  
Location of Incident

THE CITY OF NEW YORK, NYPD OFFICER THOMAS  
FIOERLLA, Shield No. 18179, and NYPD POLICE  
OFFICERS JOHN/JANE DOE NUMBERS 1-10,

Plaintiff designates Kings  
County as the place of trial.

Defendants.  
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**To the above named Defendants:**

**You are hereby summoned** to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York  
December 10, 2021

Yours, etc.

*Cary London*

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Cary London, Esq.

Shulman-Hill, PLLC

*Attorneys for Plaintiff*

1 State Street Plaza

15<sup>th</sup> Floor

New York, New York 10004

(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007  
NYPD OFFICER THOMAS FIORELLA, 60<sup>th</sup> Precinct, 2951 West 8<sup>th</sup> Street, Brooklyn  
NY 11224

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

----- X

JUSTIN PEREZ,

INDEX NO.:

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD OFFICER THOMAS  
FIORELLA, Shield No. 18179, and NYPD POLICE  
OFFICERS JOHN/JANE DOE NUMBERS 1-10,

JURY TRIAL DEMANDED

Defendants.

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Plaintiff JUSTIN PEREZ, by his attorneys, Shulman and Hill, PLLC, as and for his  
Verified Complaint herein, alleges upon information and belief as follows:

### **PRELIMINARY STATEMENT**

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On September 17, 2020, at approximately 3:00 p.m., plaintiff Justin Perez, while lawfully in the vicinity of 1530 Mermaid Avenue, County of Kings, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. In addition, Plaintiff suffered mental and emotional injury. Plaintiff was unlawfully imprisoned the Police Precinct and at Central Bookings for approximately 24 hours before he was released. Plaintiff was deprived of his State and Federal constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested and falsely imprisoned him in violation of the Fourth, Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

### **PARTIES**

2. Plaintiff Justin Perez is a resident of the state of New York.

3. NYPD OFFICER THOMAS FIORELLA, Shield No. 18179, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

4. NYPD OFFICER THOMAS FIORELLA, Shield No. 18179, is being sued in his individual and official capacities.

5. NYPD OFFICER THOMAS FIORELLA, Shield No. 18179, was at all times relevant herein assigned to the 60<sup>th</sup> Police Precinct.

6. NYPD OFFICER THOMAS FIORELLA, Shield No. 18179 is currently assigned to the 60<sup>th</sup> Precinct.

7. NYPD POLICE OFFICERS JOHN/JANE DOE NUMBERS 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

8. NYPD POLICE OFFICERS JOHN/JANE DOE NUMBERS 1-10 are being sued in their individual and official capacities.

9. NYPD POLICE OFFICERS JOHN/JANE DOE NUMBERS 1-10 were at all times relevant herein, assigned to the 60<sup>th</sup> Precinct.

10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

12. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

13. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H.

14. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

15. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

16. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

### **STATEMENT OF FACTS**

17. On September 17, 2020, at approximately 3:00 P.M., Plaintiff was lawfully at 1530 Mermaid Avenue, County of Kings, State of New York, when defendant police officers unlawfully stopped, questioned, searched, and falsely arrested Plaintiff without probable cause or legal justification.

18. On September 17, 2020, Plaintiff stopped into the deli at 1530 Mermaid Avenue to order a sandwich.

19. While waiting, Plaintiff stepped outside and sat down on a milk crate.

20. Without warning or justification, Plaintiff was approached by a defendant police officer on a bicycle who told Plaintiff that he had to leave as he was “blocking the sidewalk.”

21. Plaintiff explained that he was waiting for his sandwich from the deli, and that he would gladly leave afterwards.

22. Defendant Officer again told Plaintiff he had to leave, and then immediately grabbed plaintiff, thereby detaining Plaintiff without probable cause or legal justification.

23. Plaintiff did not resist arrest.

24. Plaintiff was taken in a marked police cruiser to the 60<sup>th</sup> Precinct, where he was searched again, and placed into a holding cell.

25. Plaintiff spent approximately 7 hours at the precinct before being taken to Kings County Central Bookings.

26. While Plaintiff was in the precinct holding cell, he was approached by four defendant officers who told Plaintiff that their Captain was making them search Plaintiff again.

27. Defendant Officers then made Plaintiff take his pants off.

28. After Plaintiff took his pants off, defendant officers made Plaintiff move his boxers around.

29. During this entire invasive and unlawful search, there was another arrestee in the holding cell watching.

30. Plaintiff was taken to Kings County Central Bookings where he was again searched, and was also photographed, fingerprinted and had his retinas scanned.

31. While Plaintiff was in custody, the defendant police officers provided the Kings County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff committed a crime.

32. Specifically, the defendant police officers falsely stated to the Kings County District Attorney's Office that Plaintiff was engaged in Disorderly Conduct and two counts of Possession of a Controlled Substance, once at the location of arrest, and again at the precinct.

33. Plaintiff remained at Central Bookings for approximately 17 hours before being arraigned and released on his own recognizance.

34. At no time did Plaintiff obstruct the sidewalk.

35. At no time did Plaintiff possess any controlled substances, either at the location of arrest or at the precinct.

36. On April 5, 2021, the criminal case against Plaintiff was dismissed and sealed.

37. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

38. At no point did Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

39. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause, unlawfully fingerprinted, photographed and searched, and unlawfully detained.

40. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, using excessive force, falsely arresting and imprisoning, humiliating, and denying Plaintiff the right to due process and a fair trial.

41. The unlawful search, seizure, false arrest and imprisonment, and denial of Plaintiff's right to a fair trial by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

**FIRST CAUSE OF ACTION**  
**Unlawful Stop, Question, and Search**

42. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

43. The illegal approach, pursuit, stop, questioning, and search employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

44. The conduct of defendants in stopping, frisking, and searching Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

45. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

46. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

47. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

**SECOND CAUSE OF ACTION**  
**Violation of Fourth and Fourteenth Amendment Rights:**  
**Unlawful Seizure and Deprivation of Liberty**

48. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

49. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

50. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

**THIRD CAUSE OF ACTION**  
**False Imprisonment**

51. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

52. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

53. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

54. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

55. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

56. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

#### **FOURTH CAUSE OF ACTION** **Negligent Infliction of Emotional Distress**

57. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

58. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

65. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

66. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

67. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

68. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

69. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

### **FIFTH CAUSE OF ACTION**

#### **Negligent Hiring, Retention, Training and Supervision**

70. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein

71. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

72. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

### **SIXTH CAUSE OF ACTION**

#### **Failure to Intervene**

73. Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

74. The defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

75. Defendants failed to intervene to prevent the unlawful conduct described herein.

76. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to unlawful search and other physical constraints.

77. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.



79. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

80. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

### **SEVENTH CAUSE OF ACTION**

#### **Violation of Fourth And Fourteenth Amendment Rights: Denial of Right to Fair Trial/Due Process**

86. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

87. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

88. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

89. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

90. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

91. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

92. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

93. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

94. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: economic, emotional and psychological injuries.

### **EIGHTH CAUSE OF ACTION**

**Malicious Prosecution**

95. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

96. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

97. Defendants commenced and continued a criminal proceeding against Plaintiff.

98. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which they were prosecuted.

99. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

100. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate Plaintiff's Fourth Amendment rights.

101. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the United States Constitution.

102. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

103. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: emotional and psychological injuries.

**JURY DEMAND**

104. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

**PRAYER FOR RELIEF**

**WHEREFORE**, Plaintiff JUSTIN PEREZ demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

DATED: New York, New York  
December 10, 2021

Yours, etc.

*Cary London*

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Cary London, Esq.  
Shulman-Hill, PLLC  
*Attorneys for Plaintiff*  
1 State Street Plaza  
15<sup>th</sup> Floor  
New York, New York 10004  
(212) 203-1090

**ATTORNEY'S VERIFICATION**

**CARY LONDON**, an attorney duly admitted to practice before the Courts of the

State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **SHULMAN AND HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York

December 10, 2021

*Cary London*  
\_\_\_\_\_  
CARY LONDON